

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Writ Petition No.3661 of 2024

Kakakhail Traders V/S Province of Punjab and others

J U D G M E N T

Date of hearing	04.02.2025
Petitioner(s) by	Mr. Fahad Iqbal, Advocate. Mr. Shoaib ur Rehman, Advocate in connected W.P.No.3851 of 2024. Mr. Samar Khan, Advocate in connected W.P.No.3852 of 2024.
Respondent(s) by	Mr. Khalid Ishaq, Advocate General Punjab alongwith Imran Shaukat Rao and Abid Aziz Rajori, Assistant Advocate Generals and Dr. Muhammad Ashraf, Director General Livestock Department, Punjab, Dr. Sohail Azmat, Deputy Secretary Technical and Muhammad Iqbal, Deputy Secretary (Admin), South Punjab Secretariat. Barrister Bushra Saqib, Advocate on behalf of Respondent M/s Noor Traders. Abdus Salam, Senior Law Officer on behalf of Respondent/Punjab Procurement Regulatory Authority.
	Mujtaba-ul-Hassan and Adil Sarwar Sial, Research Officers, Lahore High Court, Rawalpindi Bench.

JAWAD HASSAN, J. This judgment will also decide the connected petitions bearing W.P.Nos.3851 and 3852 of 2024 filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (*the “**Constitution**”*) involving the pivotal points firstly territorial jurisdiction of Rawalpindi Bench on the touchstone of Article 198 of the “*Constitution*” read with Rule 3 of the Lahore

High Court (Establishment of Benches) Rules, 1981 (the “**Rules 1981**”) and secondly prayer made under Article 199(1)(1A)¹ of the “*Constitution*” which reads as under:

“In the above circumstances, it is humbly prayed that instant writ petition may kindly be accepted and acts of the respondents while conducting aforementioned whole prequalification process and evaluation report are not only violation of PPRA Rules as mentioned above and also the infringement of fundamental rights and also a failure on the part of respondents to perform their responsibility of conducting free, transparent, competitive procurement process and the same is mis procurement for the project under the ADP (Annual Development Program) scheme (Livestock Asset Transfer to Rural Women in South Punjab during financial year 2024-25 at an estimated cost of Rs.950.58 Million), hence the acts of the respondents are liable to be declared unlawful having against the fundamental rights of citizens and direct the respondents not to open any financial bid and not to issue any award letter and readvertise the invitation for the procurement of the project under the ADP (Annual Development Program) scheme (Livestock Asset Transfer to Rural Women in South Punjab during financial year 2024-25) by keeping in view implementation of all the PPRA Rules, 2014 as applied on the subject, in the interest of justice.

It is further prayed that the respondents may also be restrained from opening of financial bids of only two bidders and subsequently restrained from giving award letter to any bidder till the final disposal of the instant petition.

Any other relief, which this Honorable Court may deems fit and proper may also be granted to the petitioner, in the interest of justice”.

I. OVERTURE

2. The Petitioner in the instant petition and in connected petitions (hereinafter would be referred to as the “**Petitioners**”) are aggrieved of disqualification to tender their bids, at pre-qualification stage of public procurement of livestock (Cow and Buffalo Heifers) to a scheme namely “Livestock Asset Transfer to Rural Women in South

¹. “Inserted through 26th Amendment in the Constitution of Islamic Republic of Pakistan, 1973 made on 21st October, 2024”.

Punjab” (the “***Scheme***”) for the financial year 2024-2025 under the Annual Development Scheme (ADB). The procurement of livestock for the “***Scheme***” was for the supply of animals in twelve districts of South Punjab by the Directorate General Livestock & Dairy Development Department, South Punjab, Bahawalpur. As per prequalification bids evaluation report, out of nine firms including the “***Petitioners***” applied and two firms namely Popular Enterprises and Noor Traders could secure 70% qualifying marks. Noor Livestock and Zakariya & Sons filed their grievance petitions before the Grievance Redressal Committee which were rejected on 23.10.2024. This order was further appealed by Noor Livestock before Managing Director, Punjab Procurement Regulatory Authority however, said appeal was rejected on 20.11.2024. Noor Livestock and Zakariya & Sons filed connected writ petitions challenging pre-qualification steps of the Respondents whereas the Petitioner of this petition, without availing alternate remedy before the Grievance Redressal Committee, directly sought procurement violative to the “***Rules***”. The grievance agitated by the “***Petitioners***” is that they, despite fulfilling criteria as per invitation, uploaded their prequalification documents on ePADS on 07.10.2024 but due to issuance of Corrigendum by the Respondent No.3, not only the criteria qua evaluation and marks were changed but also the “***Petitioners***” were declared as disqualified.

II. PETITIONERS SUBMISSION.

3. Learned counsel for the “***Petitioners***” *inter alia* argued that under the Punjab Procurement Rules, 2014 (the “***Rules***”), the procurements were to be conducted by the Respondents in a fair and transparent way protecting the rights of bidders but in the case in hand, the Respondents not only violated Rules 14 and 16(8)(c) of the “***Rules***” but also failed to perform their responsibilities to provide equal opportunity to the “***Petitioners***”; that the Respondents changed the evaluation criteria through corrigendum without assigning any reasons; that the prequalification criteria was changed by the Respondents only to favour their *bule eyed* bidders.

II. SUBMISSIONS OF LEARNED ADVOCATE GENERAL PUNJAB ON BEHALF OF RESPONDENT NO.1

4. Mr. Khalid Ishaq, Advocate General Punjab objected to maintainability of the petitions on the ground of availing alternate remedy and stated that despite submission of bids before the closing date, the “*Petitioners*” have not brought on record any qualification or material showing to be submitted in timely manner alongwith relevant documents, hence they were rightly disqualified due to lack of qualification criteria. He placed reliance on judgment passed by this Court on “*M/s BIO-LABS PRIVATE LIMITED versus PROVINCE OF PUNJAB and others*” (PLD 2020 Lahore 565).

III. SUBMISSIONS ON BEHALF OF NOOR TRADERS.

5. Barrister Bushra Saqib, Advocate argued that the grievance of the “*Petitioners*” relates to prequalification stage only, whereas the financial and technical bids of prequalified bidders have also been opened by the Respondents pursuant to which the contract has rightly been awarded to M/s Noor Traders hence, the grievance of the “*Petitioners*” cannot be extended to the extent of questioning the validity of competitive bidding. She also relied on “*M/s BIO-LABS PRIVATE LIMITED versus PROVINCE OF PUNJAB and others*” (PLD 2020 Lahore 565).

IV. DETERMINATION BY THE COURT

6. The Court confronted to learned counsel for the “*Petitioners*” qua maintainability of the petitions on the ground of territorial jurisdiction and vague prayer made therein but learned counsel could not tender satisfactory reply. This matter relates to the “*Scheme*” launched by the Respondents at South Punjab, Bahawalpur. Before proceeding further, it is observed that the Supreme Court of Pakistan in its judgment reported as “*GOVERNMENT OF SINDH THROUGH SECRETARY EDUCATION AND LITERACY DEPARTMENT and others Versus NIZAKAT ALI and others*” (2011 SCMR 592) has held that every Court prior to taking cognizance and adjudicating upon an issue should first resort to the question of assumption of jurisdiction of the Court and if it comes to the conclusion that jurisdiction can be

assumed only then it can adjudicate upon the issue. The question regarding assumption of jurisdiction and its exercise has very comprehensively been dealt with and decided by the Supreme Court of Pakistan in the case titled “Fauji Foundation and another Versus Shamimur Rehman” (PLD 1983 SC 457).

7. When further confronted to learned counsel for the “*Petitioners*” in respect of the question of territorial jurisdiction of this court in the light of judgment reported by this Court in ‘Messrs MANDVIWALLA BUILDERS AND DEVELOPERS and another versus M. AWAIS SHEIKH CEO MANGLA VIEW RESORT AND MANGLA GARRISON HOUSING (PVT.) LIMITED and others’ (2023 CLD 885) wherein the Court discussing the scope and jurisdiction of the Court held that “*if a mandatory condition for the exercise of a jurisdiction before a Court, tribunal or authority is not fulfilled, then the entire following proceedings become illegal and suffer from want of jurisdiction*”; he stated that the addresses of offices of the “*Petitioners*” are located at Rawalpindi and Islamabad thus cause of action has arisen here. Pertinently, the Respondent No.3/Director General (Extension, Research & Production), Livestock & Dairy Development South Punjab, Bahawalpur issued invitation of pre-qualification bids and grievance committee comprising Special Secretary, L&DD Department, South Punjab, Bahawalpur, (Convener) Dean, Faculty of Veterinary Sciences, CUVAS, Bahawalpur (Member) and Director Livestock Cholistan (Member/Secretary on behalf of the Respondent No.3) was notified to conduct the procurement process of the “*Scheme*” and to redress the grievance of the bidders under the Punjab Procurement Rules, 2014 (the “*Rules*”). By examining the petitions, and documents annexed with these petitions, the primary dominant object of filing these petitions is to evaluate the criteria which has been ignored by the Respondents without adhering to Rule 14 of the “*Rules*”, it is apparent that invitation for prequalification of /bidders for procurement of livestock was issued by the Respondent No.3 from South Punjab, Bahawalpur, prepublication document was issued by

the Director General (Extension, Research & Production), Livestock & Dairy Development Department, South Punjab, Bahawalpur, the invited bids were evaluated at South Punjab, Bahawalpur, grievance committee constituted by Respondents for conducting the procurement process of the “Scheme” was notified at South Punjab, Bahawalpur; hearing notice dated 07.11.2024 was issued to Livestock & Dairy Development Department, South Punjab, Bahawalpur; attendance of the representative of bidders was marked at South Punjab, Bahawalpur; minutes of meeting qua opening of financial bids were made at the office of the Respondent No.3 at South Punjab, Bahawalpur; the “Scheme” was launched at South Punjab, Bahawalpur. Thus, it becomes apparent that neither the part of the cause of action has arisen in Rawalpindi nor the Respondents arrayed in this petition against whom relief is sought, situate in Rawalpindi. The Respondents No.2 to 4 do not fall within the territorial jurisdiction of this Court and thus are not amenable to the jurisdiction of this Court. Importantly, issuance of writ is an extraordinary jurisdiction of the High Court and is invoked when stipulations in the Constitution for its issuance are met. The “Petitioners” have failed to satisfy that this High Court could exercise jurisdiction to pass direction to all the Respondents. This Court in “KARAMAT ULLAH KHAN CHAUDHRY versus THE FEDERATION OF PAKISTAN and 2 others” (2018 PLC (C.S.) 555) while discussing principles of dominant jurisdiction has held as under

“It is a recognized principle of law that Constitutional jurisdiction or jurisdiction of judicial review by High Court is exercised under Article 199 of the Constitution and not under any other instrument. The Lahore High Court is created by the Constitution of Pakistan, thus, it can only exercise powers which are conferred upon it by or under the Constitution. The High Court under Article 199 of the Constitution enjoyed ample powers but it was mandatory upon High Court to confine itself to its territorial jurisdiction as provided in the Constitution, and no one should consider constitutional jurisdiction of

the High Court fragile to misuse or deviate from same to meet his own designs or suitability. (ref. **Mirza Luqman Masud v. Government Of Pakistan and 14 others**, 2015 PLC (C.S.) 526 [Balochistan] – DB; **Azad Hafeez Ltd v. Chairman, FBR and 5 others**, (2012 M L D 1684) [Islamabad]; **Ibrahim Fibres Ltd. v. Federation Of Pakistan and 3 others**, 2009 PLD 154 [Karachi] – DB; **Dr. Qaiser Rashid v. Federal Secretary, Ministry Of Foreign Affairs, Government Of Pakistan, Islamabad**, PLD 2006 Lahore 789 – DB; **InaamElahi Nasir and others v. National Bank Of Pakistan and others**, 2013 PLC (C.S.) 899 [Islamabad]; **Danish Kaneria v. Pakistan and others**, 2012 CLC 389 [Sindh] – DB; **Mrs. Rohi Chaudhry and 2 others v. Federation Of Pakistan and 3 others**, 2010 PTD 1233 [Karachi]; **High Noon Textile Ltd v. Saudi Pak Industrial And Agricultural Investment Co. (Pvt.) Ltd and 4 others**, 2010 CLD 567 [Lahore]; **Muhammad Maqsood Sabir Ansari v. District Returning Officer, Kasur and 3 others**, 2007 CLC 1113 [Lahore]; **Mst. Shahida Maqsood v. President Of Pakistan and another**, 2004 CLC 565 [Karachi] – DB; **Province of NWFP and another v. Abdur Rahman, Forest Contractor and others**, 1991 SCMR 1321; **Muhammad Naim v. State Cement Corporation Of Pakistan and others**, 1989 CLC 1241 [Karachi] – DB)”.

8. In terms of Article 198(3) of the “Constitution”, the Bahawalpur, Multan and Rawalpindi Benches of the Lahore High Court are constitutionally constituted Benches with the area assigned to them under Article 198(6) of the “Constitution”. This exercise is undertaken in accordance with the “Rules 1981”, Rule 3 whereof regulates the distribution of matters to be filed and heard by each Bench within the area assigned to it respectively. Reliance is placed on “Havaldar (Retd.) CHIRAGH DIN BABAR versus MUHAMMAD ASLAM and 3 others” (PLD 2009 Lahore 622) wherein it has been held that

“3. The learned counsel for the petitioner has argued that under Article 199(1)(a)(ii) the Principal seat is competent to entertain the writ petition, because the impugned order has been passed by the Member Board of Revenue who is working very much within the territorial jurisdiction of the Principal seat of the Lahore High Court Lahore...

4. The learned Additional Advocate General on the other hand contends that from the facts given in the writ petition, it is clear that the dispute relates to the territorial jurisdiction of Bahawalpur Bench, inasmuch as the mutation under dispute was sanctioned in Tehsil Fortabbas by the Tehsildar, the same was challenged before Assistant Commissioner and then before the Executive District Officer (Revenue) at Bahawalnagar and only a revision petition was filed before the Board of Revenue. It is next contended that not only because the most of the impugned judgments were passed in the area of Bahawalnagar, and only revisional jurisdiction of the Board of Revenue has been exercised at Lahore, the residence of the petitioner, the land under dispute and the original and appellate orders on the issues had been passed by the Courts of Bahawalnagar. The writ petition cannot be entertained at the Principal seat. The writ is even defective to the extent that neither the functionaries of the State, who passed the original and appellate order have been made a party nor those orders have been impugned in this writ petition. Besides, there is only one High Court in the Province of Punjab and only the benches have been established for the distribution of work according to the territorial jurisdiction of the benches...

5. I have heard learned counsel for the petitioner and the learned Additional Advocate General Punjab and have also gone through relevant Article 199 and the relevant provision of the High Courts (Establishment) Order (Punjab Amendment) Ordinance, 1981. I am duly convinced that the arguments of the learned counsel for the petitioner are misconceived, the writ petitioner is resident of Bahawalnagar, the land in dispute is located in District Bahawalnagar, the original mutation

was sanctioned at Bahawalnagar and the appellate jurisdiction of the revenue hierarchy was also within the domain of Bahawalnagar. The proper place for filing the writ petition is the Bahawalpur Bench of the Lahore High Court. If the interpretation of the learned counsel for the petitioner is accepted then the establishment of the benches will become useless as the head of every department of the Province of-Punjab is stationed at Lahore and by impleading them as a party every petitioner will claim the maintainability of every petition against the State functionaries of the Province at the principal seat. With these observations I uphold the objection raised by the office.”

9. In view of the law laid down in the aforementioned judgments, the matter could not be entertained at the Rawalpindi Bench of the Lahore High Court merely because of addresses of the Petitioners at Rawalpindi and Islamabad. Since the subject matter of the titled petitions relates to the “Scheme” for South Punjab and all related ancillary activities in respect of procurement in question was also carried out by the Livestock Department of South Punjab; hence, these petitions cannot be adjudicated at Rawalpindi Bench of Lahore High Court.

10. So far as to prayer made by the “*Petitioners*” in these petitions, it is observed that these petitions were filed with a vague and unclear prayer. As mandated by Article 199(1)(1A) of the “*Constitution*”, introduced through Section 16 of the Constitution (Twenty-sixth Amendment) Act (the “Twenty-sixth Amendment”) on 21.10.2024, this Court cannot exercise jurisdiction or issue directives beyond the matters explicitly raised in these petitions. For ready reference Article 199(1)(1A) reads as follows:

“For removal of doubt, the High Court shall not make an order or give direction or make a declaration on its own or in the nature of suo motu exercise of jurisdiction beyond the contents of any application filed under clause (1).”

11. Therefore, the contents of application must be clear and apt which lead to actual grievance of the person. When confronted to

learned counsel for the “*Petitioners*” about confused and vague prayer made in these petitions, he could not satisfy the Court. In this regard reliance is placed on the judgment of the Hon’ble Supreme Court of Pakistan reported as N.W.F.P. PUBLIC SERVICE COMMISSION and others Versus MUHAMMAD ARIF and others (2011 SCMR 848) wherein it has been held that “*right which is the foundation of an Application under Article 199 is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone, who has a legal duty to perform relating to the right. There must not only be a right but a justiciable right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right, personal or otherwise, on which the Application is based is established, no order can issue under Article 199 of the Constitution*”. The Hon’ble Supreme Court of Pakistan further enunciates the principles in the judgment cited as ASDULLAH MANGI Versus PAKISTAN INTERNATIONAL AIRLINES CORPORATION (2005 SCMR 445) holding that “*the object of the proceeding initiated under Article 199 of the Constitution is the enforcement of a right and not the establishment of legal right, therefore the right of the incumbent concerned which he seeks to enforce must not only be clear and complete but simplicitor. There must be an actual infringement of the right*”. This view has further been strengthened in judgment reported as “OWAIS SHAMS DURRANI and others versus VICE-CHANCELLOR, BACHA KHAN UNIVERSITY, CHARSADDA and another” (2020 SCMR 1041) wherein the Supreme Court has held that “it is *trite* that where a citizen seeks relief in Constitutional jurisdiction he must point to a right statutory or constitutional which vests in him and has been denied in violation of the law. The Petitioners have failed to point out any right to seek regularization on the basis of any constitutional guarantee or statutory law or instrument which may have been denied to them”. In another pronouncement cited as MUHAMMAD RIAZ BHATTI Versus FEDERATION OF PAKISTAN and another (2004

SCMR 1120), the Hon’ble Supreme Court of Pakistan has held that “*on the basis of vague plea the Petitioner has sought relief, as such the office of the High Court refused to accept the said writ petition*”. Moreover, in the judgment reported as “Dr. AKHTAR HASSAN KHAN and others Versus FEDERATION OF PAKISTAN and others” (2012 **SCMR 455**) it has been held by the Hon’ble Supreme Court of Pakistan that “*the Court has to guard against frivolous petitions as it is a matter of common observation that in the garb of public interest litigation, matters are brought before the Court which are neither of public importance nor relatable to enforcement of a fundamental right or public duty*”. Hence, this Court finds that these writ petitions with vague and ambiguous prayer are not maintainable and falling beyond the territorial jurisdiction of this Bench stands **dismissed**.

(JAWAD HASSAN)
JUDGE

Approved For Reporting

JUDGE